

26SMCV01553 26SMCV01553

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C09%2F17%2F2026

Source SHA-256: 55e17e2acf8f128eab65560a7bc547f4ee0a6c0279713d59e1425c97f28244a5

Case Number: 26SMCV01553 Hearing Date: September 17, 2026 Dept: 205

HEARING DATE: September 17, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: American Express National Bank v. Raouf Khalil

CASE NUMBER: 26SMCV01533

COMP. FILED: March 24, 2026

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: American Express National Bank

RESPONDING PARTY: Raouf Khalil

BACKGROUND

This is a breach of contract case. Defendant Raouf Khalil ("Defendant") applied for and received credit from Plaintiff American Express National Bank to be used for the purchase of goods, wares and services. As a condition of receiving credit, Defendant agreed to make regular monthly payments to Plaintiff. Defendant has defaulted on making the required monthly payments.

Plaintiff brought this action to recover the outstanding balance owed on Defendant's American Express credit card account, which at the time of the filing of the complaint was \$43,083.49. Since the complaint was filed, Defendant made payments totaling \$2,584.07 which brings the current outstanding balance to \$40,499.42.

Plaintiff's proof of service shows that Defendant was substitute served on April 7, 2026, at a UPS store located at 324 S Beverly Drive Suite 1074 Beverly Hills, CA 90212. Defendant did not answer. On July 2, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Plaintiff seeks a total of \$41,014.42 which consists of (1) \$40,499.42 in damages and (2) \$515 in costs.

ANALYSIS

Plaintiff's service on Defendant was defective. Plaintiff served Defendant at a commercial mail receiving agency ("CMRA").

Cal. Civ. Proc. Code § 415.20(c) provides that "if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code." Plaintiff's billing statement to Defendant is addressed to the UPS store where service was made, so the Court assumes that it is the only address of Defendant that is reasonably known to Plaintiff.

However, section 17538.5 provides that "upon receipt of any process for any mailbox service customer, the CMRA owner or operator shall (A) within 48 hours after receipt of any process, place a copy of the documents or a notice that the documents were received into the customer's mailbox or other place where the customer usually receives his or her mail, unless the mail receiving service for the customer was previously terminated, and (B) within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer. The CMRA shall obtain a certificate of mailing in connection with the mailing of the documents. Service of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing."

There is no indication that the CMRA mailed the documents by first class mail to the last known home or personal address of Defendant. The proof of service shows that the process server mailed the documents, not the CMRA agent, and he mailed it to the UPS store, not Defendant's home or personal address which was presumably not known to the process server. There is also no certificate of mailing from the CMRA which shows it mailed the documents within 5 days of receipt.

Therefore, service was never perfected. The Court does not have jurisdiction over Defendant and cannot enter default judgment. A judgment may be void because of improper service of summons. (*Ellard v. Conway*, supra, 94 Cal.App.4th 540, 544; *Gibble v. Car-Lene Research, Inc.* (1998) 67 Cal.App.4th 295, 313; *Weil & Brown*, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2006) P 5:485, pp. 5-113 to 5-114 (*Weil & Brown*).)

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is DENIED. The Court sets an Order to Show Cause why the case should not be dismissed for lack of proper proof of service on January 21, 2027 at 8:30 a.m.